

1.

CASE #	CASE NAME	HEARING NAME
CVPS2202260	LOZANO VS LEDESMA & MEYER CONSTRUCTION CO., INC.	MOTION FOR RECONSIDERATION (CCP S 1008)

Tentative Ruling:

The Court denies this motion for reconsideration. The matter is off calendar.

The Court reiterates its order on April 17, 2026:

Court has read and considered court filings.

The Court having read and considered the pleadings of both parties, having read and considered the Court of Appeal's Remittitur filed January 20, 2026, denies the instant "Motion to Reactivate Case on Complaint" Hearing re: Motion (to Reactivate Case) on 04/24/2026 at 08:30 AM vacated.

The Court of Appeal stated in its November 17, 2025 Order:

"The court has reviewed the civil case information statement filed November 10, 2025, the notice of appeal filed October 16, 2025, the judgment entered July 17, 2023, from which appellant attempts to appeal, and the notice of entry of judgment dated August 4, 2023. Because the appeal appears to be untimely, it must be and is DISMISSED. California Rules of Court, rule 8. 104(a) provides that a notice of appeal must be filed within 60 days following service of the notice of entry of judgment or 180 days after entry of judgment, whichever is earlier. In this case, the notice of appeal was filed 804 days following service of the notice of entry and 822 days after entry of judgment. The timeliness requirement is absolutely jurisdictional. There are no exceptions other than those provided in California Rules of Court, rule 8. 108. (K.J. v. Los Angeles Unified School Dist. (2020) 8 Cal.5th 875, 881; Garg v. Garg(2022) 82 Ca1.App. 5th 1036, 1041.) Thus, the court has no jurisdiction over this appeal."

In plain language, this case has ended.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2501278	NIZAM VS TAPIA	MOTION FOR SUMMARY ADJUDICATION ON COMPLAINT

Tentative Ruling:

Summary of Ruling: The Court declines to rule on all evidentiary objections. The request for summary adjudication is improper and is denied as it fails to comply with California Rules of Court, rule 3.1350(b) and (d) and CCP § 437c(f)(1). The court treats this as a motion for summary judgment.

When treated as a motion for summary judgment, Plaintiff fails to negate all elements of negligence by requesting the issue of damage be left for trial. Neither the motion nor the separate statement provide evidence of damage in the form of personal injury to Plaintiff, property damage to Plaintiff's vehicle, or otherwise. The court denies the motion entirely.

FACTUAL / PROCEDURAL CONTEXT

This is an automobile accident case. On 3/10/2025, Matthew Nizam ("Plaintiff") filed a Judicial Council form complaint against Enrique Tapia ("Defendant"). The complaint asserts two causes of action for motor vehicle negligence and general negligence. The complaint alleges Defendant ran a red light and collided with Plaintiff's vehicle, causing injury.

Now, Plaintiff moves for summary adjudication "...on the issue of liability only, pursuant to Code of Civil Procedure section 437c subdivision (f)(1)." (See Plaintiff's Notice of Motion.) Plaintiff seeks to summarily adjudicate the issue of liability, leaving damages for trial. Plaintiff provides evidence that Defendant has admitted liability and has no evidence of comparative fault.

In opposition, Defendant argues the motion is procedurally deficient due to the separate statement not identifying the issues Plaintiff seeks to summarily adjudicate and because you cannot summarily adjudicate all elements of negligence except damages.

In reply, Plaintiff argues that the procedural defects with the separate statement are harmless error and that this is a proper motion for summary judgment as to "the issue of duty" as allowed by CCP § 437c(f)(1)

ANALYSIS

I. Summary Judgment Standard

From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 855.) When a plaintiff is the moving party, the plaintiff has the burden to produce admissible evidence on each element of a cause of action entitling him to judgment. (CCP § 437c(p)(1).) The plaintiff does not have the burden to disprove affirmative defenses. (*Id.*) At that point, the burden shifts to the defendant to show that a triable issue exists. (*Id.*)

II. MSJ - Merits

A. Evidentiary Objections

Defendant submits evidentiary objections in opposition and Plaintiff submits evidentiary objections along with the reply brief. For the reasons stated below, the motion is denied which makes all evidentiary objections moot. The court declines to rule on all evidentiary objections.

B. Procedural Issues and Denial on Merits

Plaintiff's motion contains numerous procedural defects that warrant denial entirely.

A party can seek summary adjudication of one or more cause of action, one or more affirmative defense, one or more claim for damages, or one or more issue of duty. (CCP § 437c(f)(1).) "If a summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated verbatim, in the separate statement of undisputed material facts." (California Rules of Court, rule 3.1350(b).) The separate statement must separately identify each cause of action at issue. (*Id.* at (d)(1)(A).) It must also identify "[e]ach supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion." (*Id.* at (d)(1)(B).)

Here, the separate statement does not separate out any of the specific causes of action or separate issues upon which summary adjudication can be sought. There is no authority allowing Plaintiff to move for summary adjudication of liability only. Plaintiff states that *Childhelp, Inc. v. City of Los Angeles* (2023) 91 Cal.App.5th 224, 233 supports his argument that under CCP § 437c(f)(1), a party may move for summary adjudication on liability alone, leaving damages for trial. *Childhelp, Inc.* does not mention subdivision (f)(1) anywhere in the opinion and primarily concerns the applicability of promissory estoppel against a public entity. (*Id.* at 241-242.) Page 233 of the opinion, to which Plaintiff's pin cite refers too, is a part of the factual and procedural background of the case.

While Plaintiff is correct that CCP § 437c(f)(1) allows summary adjudication of the issue of duty, it does not allow piecemeal adjudication of the other elements of negligence – that is, breach and causation as argued in Plaintiff's motion. Neither the notice nor the separate statement identify the motion as one brought on the issue of duty. It is not until the reply brief that Plaintiff attempts to turn this into a motion for summary adjudication on the issue of duty, while still trying to argue that this allows the court to also summarily adjudicate breach and causation as well.

Due to this, the request for summary adjudication is improper and is denied as it fails to comply with California Rules of Court, rule 3.1350(b) and (d) and CCP § 437c(f)(1). The court therefore treats this as a motion for summary judgment.

When treated as a motion for summary judgment, the motion is denied because Plaintiff fails to meet his initial burden to negate all elements of negligence. To succeed in a negligence action, the plaintiff must show that (1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused (4) the plaintiff's damages or injuries. (*Thomas v. Stenberg* (2012) 206 Cal.App.4th 654, 662.) By Plaintiff's own admission, the motion does not address or establish damages. Neither the motion nor the separate statement provide evidence of

damage in the form of personal injury to Plaintiff, property damage to Plaintiff's vehicle, or otherwise. The court denies the motion entirely.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2501478	T.G. VS CORONA-NORCO UNIFIED SCHOOL DISTRICT	MOTION FOR ATTORNEYS FEES BY T.G.

Tentative Ruling:

Matter continued to June 15, 2026 in Department 4.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2502502	FIRSTLINE ENVIRONMENTAL SOLUTIONS, LLC VS VAN DYK TANK LINES, INC.	MOTION FOR LEAVE TO AMEND 2ND AMENDED COMPLAINT

Tentative Ruling:

Summary of Ruling: The Court grants the motion. It is not necessary for the court to reach the objections as all evidence in support of this motion except the proposed amended complaint and the Killem declaration are irrelevant to whether leave to amend should be allowed.

Factual / Procedural Context:

This action rises out of unpaid invoices for hazardous substance removal. Statewide Emergency Services Inc. ("Statewide") is an emergency hazardous substance removal contractor. (SAC, ¶ 8.) Plaintiff Firstline Environmental Solutions, LLC alleges that on August 15, 2023 it purchased all right, title and interest in the accounts receivable of Statewide under a "Transition Service Agreement," and Plaintiff is thereby entitled to all amounts earned by Statewide as of the date of the agreement and as well as any amounts it earns in the future.

This action concerns nonpayment for services rendered by Statewide from August 8, 2024, through September 25, 2024, for removal of hazardous material fuel spill in the City of Banning, referred to as the "Banning Spill." Statewide had contracted with defendant Van Dyk Tank Lines on the Banning Spill. Defendant Federated Service Insurance Company is Van Dyk's insurer. Plaintiff alleges that Van Dyk's managing agent, Ronald Nuckles (also a Defendant), at the site of the Banning Spill and entered into an oral contract for Statewide's work on the Banning Spill, under the same terms as the previous work performed by Statewide on behalf of Van Dyk on the "I-15 Spill" earlier in the year, including the manner in which payment would be made for Statewide services by Van Dyk's insurer, Federated. Plaintiff further alleges that, on September